



POLICE DEPARTMENT

December 14, 2021

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 201909547 regarding Inspector Megan O'Malley, Tax No. 930859, Lieutenant John Dasaro, Tax No. 948198, Police Officer Christopher Digioia, Tax No. 946939, Police Officer Christopher Brower, Tax No. 957404, and Police Officer Shingru Wang, Tax No. 957269.

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) request for Charges/Specifications in connection with CCRB Case No. 201909547, pertaining to the above members of the Department. The Mayor's Executive Order extended statute of limitations in this matter expires on December 15, 2021. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue charges/specifications against Inspector O'Malley, Lieutenant Dasaro, and Police Officer Wang would be detrimental to the Police Department's disciplinary process.

The Police Commissioner, having reviewed the substantiated allegations against Inspector O'Malley, has determined that Training from the Department in the subjects addressed by the allegations is the most appropriate manner to address the allegations. The Police Commissioner considered the length of time that has passed since the underlying incident, and the realm of discretion and judgment that is addressed in the substantiated allegations, in reaching this decision. Therefore, as provided for within the Memorandum of Understanding (M.O.U.) between the CCRB and the Police Department and based on the interests of justice, the Police Commissioner intends to retain the current matter, as it pertains to Inspector O'Malley, within the Police Department.

After reviewing the substantiated allegations against Lieutenant Dasaro, the Police Commissioner has determined that allegation "J" should receive no disciplinary action as the decision to briefly point his firearm at the suspect was, under the circumstances described by Lieutenant Dasaro, at that moment in time, within his reasonable discretion and does not amount to misconduct. In connection with the other substantiated allegations, the Police Commissioner has determined that the appropriate penalty is a Schedule "B" Command Discipline. Therefore, as provided for within the M.O.U., and based on the interests of justice, the Police Commissioner intends to retain the current matter, as it pertains to Lieutenant Dasaro, within the Police Department.

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The Police Commissioner, having reviewed the substantiated allegations against Police Officer Wang, has determined that allegation "P" should receive no disciplinary action as Officer Wang's decision regarding how to remove the handcuffed individual's backpack was reasonable and appropriate in connection with the performance of his police duties and was, at that moment, selected as the least dangerous alternative to address a potential risk to all parties, and therefore did not amount to misconduct. Any remedy sought to address the damage caused to the backpack would constitute a civil matter, to be addressed in a different forum. In connection with the other substantiated allegation, the Police Commissioner has determined that a Schedule "A" Command Discipline is the appropriate penalty. Therefore, as provided for within the M.O.U., and based on the interests of justice, the Police Commissioner intends to retain the current matter, as it pertains to Police Officer Wang, within the Police Department.

Finally, because Police Officers Brower and Digioia are not eligible under the M.O.U. to have their disciplinary cases retained by the Department, they will receive charges/specifications from CCRB as appropriate, in connection with the substantiated allegations that fall within CCRB's jurisdictional authority. Please note that regarding Police Officer Brower, because allegation "F" involved an alleged traffic accident, and not a use of force, the Police Commissioner has directed that there be no charge/specification imposed in connection with that allegation, and that any investigation of the traffic accident would be conducted by the Police Department.

If you have any questions, please feel free to contact me at § 87(2)(b)

Yours truly,

A handwritten signature in black ink, appearing to read 'Lourdes Soto', is written over the typed name and title.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office



BILL DE BLASIO
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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FREDERICK DAVIE
CHAIR

December 17, 2021

The Honorable Dermot F. Shea
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. DI Megan O'Malley, LT John Dasaro, PO Christopher Brower, PO Christopher DiGioia, and PO Shingru Wang
Disciplinary Case Nos. 2021-24304, 2021-24298, 2021-24293, 2021-24295, and 2021-24301

Commissioner Shea:

I am writing in response to the letter from Inspector Lourdes Soto, dated December 15, 2021, informing the Civilian Complaint Review Board (hereinafter, "CCRB") of your intent to impose training on DI Megan O'Malley, impose a Schedule B Command Discipline upon LT John Dasaro, impose a Schedule A Command Discipline upon PO Shingru Wang, and not serve the force specification against PO Brower for striking a civilian with his vehicle. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the Police Department (hereinafter, the "MOU"), I am responding to Inspector Soto's notification.

With regard to DI O'Malley, while her lack of disciplinary history allows her to be subject to Provision Two of the MOU, I urge you to allow the disciplinary process to continue in order to allow the CCRB to present a record that would allow us to convince you of the appropriateness of the discipline recommended by CCRB. As DI O'Malley's actions would constitute a crime in a court of appropriate jurisdiction, the crime exception to the statute of limitations applies pursuant to Civil Service Law § 75(4). I attached new charges that use Official Misconduct (PL §190.00-2) for specifications One through Five and Unlawful Imprisonment in the Second Degree (PL §135.05) for specification Six through Eight as Exhibit 1.

If you chose not to serve the attached charges, I ask you to reconsider the discipline you intend to impose. While it may be appropriate to treat first the penalties for specifications one through five against her concurrently, it is certainly not appropriate to do so for specifications six through eight. Even if the factors cited in INS Soto's letter were sufficient to warrant a mitigated penalty for DI O'Malley, that penalty would be in excess of 30 penalty days. The factors cited,

“the length of time that has passed since the underlying incident, and the realm of discretion and judgment that is addressed in the substantiated allegations,” do not create an extraordinary occurrence that would warrant deviating downward from the Matrix. Therefore, should you decide to retain the case, please continue to uphold the 2021 MOU between NYPD and CCRB and bring departmental charges against DI O’Malley.

With regard to PO Wang, while his lack of disciplinary history allows him to be subject to Provision Two of the MOU, I urge you to allow the disciplinary process to continue to in order to allow the CCRB to present a record that would allow us to convince you of the appropriateness of the discipline recommended by CCRB. Even though he accepted a Schedule A Command Discipline for Allegation O for the frisk (Closing Report at page 1), this does not preclude or estop the disciplinary process from moving forward on Allegation P as it was not included in the Command Discipline, thus there was no determination made on its merits, and there is no identity of issues with the other allegation. Despite your characterization of the damage to the backpack as a civil matter, PO Wang’s actions would constitute a crime in a court of appropriate jurisdiction and the crime exception to the statute of limitations, pursuant to Civil Service Law § 75(4), applies to Allegation P. I attached new charges that use Criminal Mischief in the Fourth Degree (PL §145.00) for Specification One as Exhibit 2. These charges do not include a specification for an Improper Frisk.

With regard to LT Dasaro, while his lack of disciplinary history allows him to be subject to Provision Two of the MOU, I believe that allowing the disciplinary process to continue, permitting the entirety of the evidence to be put before you rather than just “the circumstances described by LT Dasaro,” including the Body Worn Camera footage and the testimony of independent witnesses, would give you a fuller picture of the misconduct found by the Board and convince you of the need to discipline LT Dasaro for pointing a firearm at a 14-year-old boy. Even though he accepted a Schedule B Command Discipline for all of the allegations other than for Allegation J (Closing Report at page 1), this does not preclude or estop the disciplinary process from moving forward on Allegation J as it was not included in the Command Discipline, thus there was no determination made on its merits, and there is no identity of issues with the other allegations. Allegation J is the only allegation that involved LT Dasaro’s pointing of his weapon. As LT Dasaro’s actions would also constitute a crime in a court of appropriate jurisdiction, the crime exception to the statute of limitations under Civil Service Law § 75(4) applies, and pursuit of charges on Allegation J is not time barred. I attached new charges that use Menacing in the Third Degree (PL §120.15) for Specification One as Exhibit 3. These charges do not include specifications for Improper Stop, Improper Frisk, or Improper Search of a Person.

Finally, with regard to PO Brower, while the Police Commissioner is the final arbiter of discipline, and at the conclusion of the disciplinary process you would be able to find him not guilty of using his vehicle inappropriately against a 15-year-old boy, CCRB has the power to define its jurisdiction as granted to it by the Charter. See *Patrick Lynch, et al. v. CCRB*, 145653/2021, Decision and Order on Motion, dated November 8, 2021, at 10 (N.Y. Sup. Ct., Love, J.) (“The CCRB’s interpretation of its ... jurisdiction is entitled to ‘great weight and judicial deference.’”, citing *Matter of Toys “R” Us v. Silva*, 89 N.Y.2d 411, 418 (1996)). CCRB’s determination that PO Brower’s operation of a departmental vehicle resulted in excessive force is not ripe for determination at this point in the disciplinary process. As PO Brower’s actions would also constitute a crime in a court of appropriate jurisdiction, the crime exception to the statute of limitations applies pursuant to Civil Service Law § 75(4). I attached new charges that use Assault in the Third Degree for (PL §120.00-3) for Specification One and Criminal Mischief in the Fourth

Degree (PL §145.00) for Exhibit 4. These charges do not include specifications for Improper Search of a Person.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you instruct the Department Advocate to serve the charges attached hereto on DI O'Malley, PO Wang, LT Dasaro, and PO Brower.

Respectfully submitted,



Jonathan Darche, Esq.
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 3, 2023

Re: CCRB Case No. 201909547 regarding Deputy Chief Megan O'Malley, Tax No. 930859, Lieutenant John Dasaro, Tax No. 948198, Police Officer Christopher Digioia, Tax No. 946939, Police Officer Christopher Brower, Tax No. 957404, and Police Officer Shingru Wang, Tax No. 957269

Dear Mr. Darche:

The former Police Commissioner reviewed your letter, dated December 17, 2021, concerning the CCRB case involving the above members, and nevertheless maintained that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Deputy Chief O'Malley, Lieutenant Dasaro, and Police Officer Wang for the reasons expressed in my December 14, 2021 letter.

Further, the former Police Commissioner affirmed his position regarding the appropriate charges for Officer Brower, and acknowledged that Officer Digioia would receive charges as requested by CCRB, for the reasons expressed in my December 14, 2021 letter.

Therefore, the former Police Commissioner affirmed his decision to exercise Provision Two of the Memorandum of Understanding and directed that Deputy Chief O'Malley receive formalized training, Lieutenant Dasaro be issued a Schedule "B" Command Discipline, and Police Officer Wang be issued a Schedule "A" Command Discipline, in connection with this matter.

If you have any questions, please feel free to contact me at § 87(2)(b)

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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